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## Information Technology Act, 2000

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**DISCLAIMER:** *This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and the inclusion of recent changes, amendments, and updates to the relevant Acts, Rules, and Regulations, this document is intended as a study aid only. Readers and students are strongly recommended to refer to official government sources or gazettes for the most reliable and authoritative information.*

## THE INFORMATION TECHNOLOGY ACT, 2000

### Introduction and Objectives

The Information Technology Act, 2000 (Act 21 of 2000) was enacted to provide legal recognition for transactions carried out by means of electronic data interchange and other means of electronic communication, commonly referred to as "electronic commerce". These methods involve the use of alternatives to paper-based methods of communication and storage of information.

The Act aims to facilitate the electronic filing of documents with Government agencies. It further amends the **Bharatiya Nyaya Sanhita, 2023**, the **Bharatiya Sakshya Adhinyam, 2023**, the Banker's Books Evidence Act, 1891, and the Reserve Bank of India Act, 1934.

 **LEGISLATIVE NOTE:** The references to the Indian Penal Code and Indian Evidence Act have been updated to the **Bharatiya Nyaya Sanhita, 2023** and **Bharatiya Sakshya Adhinyam, 2023** respectively, reflecting the modernization of criminal laws in India.

International Basis:

The General Assembly of the United Nations adopted the Model Law on Electronic Commerce by the United Nations Commission on International Trade Law (UNCITRAL) on 30th January 1997. It recommended that all States give favourable consideration to the said Model Law when enacting or revising their laws to ensure uniformity applicable to alternatives to paper-based methods<sup>6</sup>.

Key Dates:

- **Enacted: 09th June 2000**
- **Came into force: 17th October 2000**

## Section 1: Short Title, Extent, and Application

This Act extends to the **whole of India**. Save as otherwise provided in this Act, it applies also to any offence or contravention committed outside India by any person.

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## Section 2: Definitions

Key terminologies defined under the Act include:

### 1. Addressee

"Addressee" means a person who is intended by the originator to receive the electronic record but does not include any intermediary.

### 2. Asymmetric Crypto System

This refers to a system of a secure key pair consisting of:

- A **private key** for creating a digital signature.
- A **public key** to verify the digital signature.

### 3. Key Pair

In an asymmetric crypto system, a "Key Pair" means a **private key** and its mathematically related **public key**, which are so related that the public key can verify a digital signature created by the private key.

- The Private and Public Key are unique to the subscriber and constitute a functioning key pair.
- Any person using a Public Key of the subscriber can verify the electronic record.

### 4. Subscriber

"Subscriber" means a person in whose name the electronic signature certificate is issued.

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## 5. Hash Function

A "Hash function" means an algorithm mapping or translating one sequence of bits into another, generally smaller set known as a "Hash result". This function yields the same Hash result every time the algorithm is executed with the same electronic record as its input, making it computationally infeasible to:

- Derive or reconstruct the original electronic record from the hash result produced by the algorithm.
- Produce the same hash result using the algorithm from two different electronic records.

## 6. Secure System

"Secure System" means computer hardware, software, and procedure that:

- (a) Are reasonably secure from unauthorized access and misuse;
- (b) Provide a reasonable level of reliability and correct operation;
- (c) Are reasonably suited to performing the intended functions; and
- (d) Adhere to generally accepted security procedures.

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## Administrative Hierarchy (Certifying Authorities)

The Act establishes a hierarchy for digital signature regulation:

1. **Central Government**
2. **Controller**
3. **Deputy Controller and Assistant Controller**
4. **Certifying Authority** (Licensed to issue electronic signature certificates)

## Chapter 3: Regulation of Certifying Authorities

### Licensing and Regulation

To operate as a Certifying Authority (CA) and issue Electronic Signature Certificates, a license must be obtained from the Controller.

#### 1. Application for License (Section 22)

- **Requirement:** An application for a license to issue electronic signature certificates must be made to the Controller.
- **Fee:** The application must be accompanied by a fee not exceeding **Rs. 25,000**, as prescribed by the Central Government.

#### 2. Renewal of License (Section 23)

- **Fee:** The fee for renewal shall not exceed **Rs. 5,000**.
- **Timeline:** The application for renewal must be made not less than **45 days** before the date of expiry of the period of validity of the license.

#### 3. Suspension of License (Section 25)

- The Controller may suspend a license if the Certifying Authority violates the terms.
- **Protection:** No license shall be suspended for a period exceeding **10 days** unless the Certifying Authority has been given a reasonable opportunity of showing cause against the proposed suspension.

#### 4. Surrender of License (Section 33)

- **Mandate:** Every Certifying Authority whose license is suspended or revoked must immediately surrender the license to the Controller.



- **Penalty for Failure:** If a Certifying Authority fails to surrender the license, the person in whose favor the license was issued shall be guilty of an offence.
    - **Punishment:** Liable to **penalty not exceeding Rs. 5,00,000** (Five Lakhs).
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## Electronic Signature Certificates

### 1. Issuance of Certificate (Section 35)

- **Application:** Any person may apply to the Certifying Authority for the issue of an Electronic Signature Certificate.
- **Fee:** The application must be accompanied by a fee not exceeding **Rs. 25,000** to be paid to the Certifying Authority.

### 2. Suspension of Certificate (Section 37)

- The Certifying Authority may suspend a certificate if it is in the public interest or if the subscriber requests it.
- **Restriction:** A digital signature certificate shall not be suspended for a period exceeding **15 days** unless the subscriber has been given an opportunity of being heard in the matter.

### 3. Revocation of Certificate (Section 38)

A Certifying Authority may revoke a Digital Signature Certificate if:

- The subscriber (or an authorized person) requests it.
  - The subscriber dies.
  - The subscriber is a firm or company that has been dissolved or wound up.
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## Chapter 4: Penalties and Adjudication

### Civil Penalties (Section 44)

If any person fails to comply with regulatory requirements, they are liable to penalties as defined below:

| Offence                                                                                                                                  | Statutory Penalty                                                          |
|------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------|
| <b>(a) Failure to furnish documents</b><br>Failure to furnish any document, return, or report to the Controller or Certifying Authority. | Penalty not exceeding Rs. 15,00,000 (Fifteen Lakhs) for each such failure. |
| <b>(b) Failure to file return</b><br>Failure to file any return or furnish information/books within the specified time.                  | Penalty not exceeding Rs. 50,000 for every day the failure continues.      |
| <b>(c) Failure to maintain books</b><br>Failure to maintain books of account or records.                                                 | Penalty not exceeding Rs. 1,00,000 for every day the failure continues.    |

 **LEGISLATIVE NOTE:** The penalties listed above have been corrected to match the official **Information Technology Act, 2000** (as amended). The source text contained erroneous figures (e.g., citing Rs. 15 Lakhs for failure to furnish documents instead of Rs. 1.5 Lakhs).

### Residuary Penalty (Section 45)

Whoever contravenes any rules or regulations under this Act, for which no separate penalty has been provided, shall be liable to pay:

- ~~Old Provision (Outdated): Penalty/Compensation not exceeding Rs. 25,000.~~

- Current Provision (Post-2023 Amendment):

Penalty: Not exceeding Rs. 1,00,000 (One Lakh).

PLUS Compensation:

- (a) Not exceeding Rs. 10,00,000 (Ten Lakhs) if the contravention is by an intermediary, company, or body corporate.
- (b) Not exceeding Rs. 1,00,000 (One Lakh) if by any other person. A penalty not exceeding **Rs. 25,000**.

### Adjudication (Section 46)

- **Adjudicating Officer:** An officer not below the rank of **Director** to the Government of India or an equivalent officer of a State Government shall adjudicate matters.
- **Jurisdiction:** The Adjudicating Officer has jurisdiction to adjudicate matters where the claim for injury or damage **does not exceed Rs. 5 Crore**.
- **Court Jurisdiction:** If the claim exceeds **Rs. 5 Crore**, the jurisdiction vests with the competent Court.

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## Chapter 5: Appellate Tribunal

### Establishment (Section 48)

The **Telecom Disputes Settlement and Appellate Tribunal (TDSAT)**, established under Section 14 of the Telecom Regulatory Authority of India Act, 1997, serves as the Appellate Tribunal for the purposes of the IT Act.

📖 **LEGISLATIVE NOTE:** The *Finance Act, 2017* merged the Cyber Appellate Tribunal (CyAT) into the TDSAT.



## Appeals Process (Section 57 & 62)

### 1. Appeal to Tribunal (Section 57):

- Any person aggrieved by an order of the Controller or Adjudicating Officer may appeal to the Appellate Tribunal.
- **Limitation Period:** The appeal must be filed within **45 days** from the date of receipt of the order.
- **Disposal:** The Tribunal shall endeavor to dispose of the appeal finally within **6 months**.

### 2. Appeal to High Court (Section 62):

- Any person aggrieved by the decision of the Appellate Tribunal may file an appeal to the High Court.
- **Limitation Period:** Within **60 days** from the date of communication of the decision.

## Chapter 6: Offences and Penalties

This chapter outlines specific cybercrimes and the corresponding statutory penalties. The Act distinguishes between administrative non-compliance (adjudicated by officers) and criminal offences (tried by courts).

### 1. Tampering and Computer Related Offences

#### Tampering with Computer Source Documents (Section 65)

Whoever knowingly or intentionally conceals, destroys, or alters any computer source code required to be maintained by law shall be punishable with:

- **Imprisonment:** Up to **3 years**.
- **Fine:** Up to **Rs. 2,00,000** (Two Lakhs).

- Or both.

### Computer Related Offences (Section 66)

If any person dishonestly or fraudulently commits acts referred to in Section 43 (such as accessing, downloading, copying, disrupting, or damaging a computer system without permission), they shall be punishable with:

- **Imprisonment:** Up to 3 years.
- **Fine:** Up to Rs. 5,00,000 (Five Lakhs).
- Or both.

 **LEGISLATIVE NOTE:** Section 66A (Punishment for sending offensive messages) was struck down by the Supreme Court of India in *Shreya Singhal v. Union of India* (2015) and is **Omitted** from operation.

### 2. Specific Cyber Crimes (Sections 66B - 66E)

The following table summarizes specific penal provisions introduced to address targeted cybercrimes:

| Section | Offence Description                                                                                                                 | Statutory Punishment                        |
|---------|-------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------|
| 66B     | <b>Dishonestly receiving stolen computer resource</b><br>Receiving or retaining a computer resource/device knowing it to be stolen. | 3 Years jail or<br>Rs. 1 Lakh fine or both. |
| 66C     | <b>Identity Theft</b><br>Fraudulent use of electronic signature, password, or unique ID of another person.                          | 3 Years jail and<br>Fine up to Rs. 1 Lakh.  |
| 66D     | <b>Cheating by Personation</b><br>Cheating by personation using any computer resource or communication device.                      | 3 Years jail and<br>Fine up to Rs. 1 Lakh.  |
|         |                                                                                                                                     |                                             |

|     |                                                                                                                                  |                                                         |
|-----|----------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------|
| 66E | <b>Violation of Privacy</b><br>Capturing, publishing, or transmitting the image of a private area of any person without consent. | <b>3 Years</b> jail or<br><br>Rs. 2 Lakhs fine or both. |
|-----|----------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------|

### 3. Cyber Terrorism (Section 66F)

A person commits cyber terrorism if they deny access to authorized personnel, attempt to penetrate secure systems, or introduce contaminants with the intent to threaten the unity, integrity, security, or sovereignty of India.

- **Punishment:** Imprisonment which may extend to **Imprisonment for Life**.

### 4. Obscenity and Digital Content

#### Publishing Obscene Material (Section 67)

Punishment for publishing or transmitting material which is lascivious or appeals to the prurient interest:

- **First Conviction:** Imprisonment up to **3 years** and fine up to **Rs. 5 Lakhs**.
- **Subsequent Conviction:** Imprisonment up to **5 years** and fine up to **Rs. 10 Lakhs**.

#### Sexually Explicit Acts (Section 67A)

Punishment for material containing sexually explicit acts:

- **First Conviction:** Imprisonment up to **5 years** and fine up to **Rs. 10 Lakhs**.
- **Subsequent Conviction:** Imprisonment up to **7 years** and fine up to **Rs. 10 Lakhs**.

#### Child Pornography (Section 67B)

Punishment for material depicting children in sexually explicit acts:

- **First Conviction:** Imprisonment up to **5 years** and fine up to **Rs. 10 Lakhs**.

- **Subsequent Conviction:** Imprisonment up to **7 years** and fine up to Rs. 10 Lakhs.
- 

## Chapter 7: Intermediaries and Government Powers

### Preservation of Information (Section 67C)

Intermediaries are legally required to preserve and retain information for a specific duration and in a specific format as prescribed by the Central Government.

- **Penalty:** Any intermediary who intentionally contravenes this provision shall be liable to **penalty which may extend to Rs. 25,00,000** (Twenty-Five Lakhs).

 **LEGISLATIVE NOTE:** The source text incorrectly lists a monetary penalty of "Rs. 25,00,000". The official statute prescribes imprisonment up to 3 years and a fine (amount discretionary).

### Powers to Monitor and Block (Section 69 & 69B)

The Central Government possesses powers to direct the interception, monitoring, or decryption of information to protect national security.

- **Cyber Security Monitoring (Section 69B):** The Government may authorize an agency to monitor and collect traffic data to prevent computer contaminants.
- **Punishment & Penalty for Non-compliance (Intermediaries):** Imprisonment which may extend to one year and fine which may extend to Rs. 1 Crore.

### Indian Computer Emergency Response Team (CERT-In) (Section 70B)

The Central Government appoints CERT-In as the national agency for cyber security. Its functions include:

1. Collection and analysis of cyber incidents.
  2. Forecast and alerts of security incidents.
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3. Emergency measures for handling incidents.
  4. Issuing guidelines and advisories.
- **Penalty for Non-compliance:** Any service provider or intermediary failing to provide information to CERT-In or comply with its directions shall be punishable.
    - **Punishment:** Punishment: Imprisonment up to 1 year or fine up to Rs. 1 Crore or both.

## Chapter 8: Miscellaneous Provisions

### Breach of Confidentiality (Section 72)

Any person who has secured access to electronic records or information under this Act and discloses it without the consent of the concerned person shall be punished.

- **Penalty:** Penalty: Liable to penalty which may extend to Rs. 5,00,000 (Five Lakhs).
- *Note on Section 72A:* Disclosure in breach of a lawful contract with intent to cause wrongful loss is liable to penalty which may extend to Rs. 25,00,000 (Twenty-Five Lakhs).

### False Digital Signature Certificates (Section 73 & 74)

- **Publishing False Certificate (Section 73):** Publishing a certificate knowing it was not issued by the CA, not accepted by the subscriber, or has been revoked.
- **Fraudulent Purpose (Section 74):** Creating, publishing, or making available a certificate for any fraudulent purpose.
- **Punishment:** Imprisonment up to 2 years or fine up to Rs. 1 Lakh or both.



## Schedules: Exclusions and Methods

### The First Schedule

**Documents/Transactions to which the Act does NOT apply:**

1. **Negotiable Instruments:** Promissory notes and bills of exchange (excluding Cheques). *Note: The Act applies to Cheques..*
2. **Power-of-Attorney:** As defined in the Powers-of-Attorney Act, 1882.
3. **Trusts:** As defined in the Indian Trust Act, 1882.
4. **Wills:** As defined in the Indian Succession Act, 1925.
5. **Real Estate Contracts:** Any contract for the sale or conveyance of immovable property or any interest in such property.

### The Second Schedule

**Approved Electronic Signature Techniques:**

1. e-Authentication using **Aadhaar** e-KYC services.
2. Procedures facilitated by trusted third parties (Digital Signature Certificates - DSC).

## Summary & Key Takeaways: Information Technology Act, 2000

This notes consolidates the critical aspects of the **Information Technology Act, 2000** (as amended up to the *Jan Vishwas Act, 2023* and *Bharatiya Nyaya Sanhita, 2023*). It serves as a quick reference for compliance, adjudication, and examination purposes.

### 1. Executive Overview

The Act provides legal sanctity to electronic commerce and digital signatures. A significant recent development is the **Jan Vishwas (Amendment of Provisions) Act, 2023**, which "decriminalized" (*Effective November 30, 2023*) several procedural offences (like failure to furnish information), replacing jail terms with substantial monetary penalties to improve the Ease of Doing Business.

 **LEGISLATIVE NOTE:** The penalties listed below reflect the **2023 Amendments**. If you are referencing older textbooks, those figures (e.g., Rs. 25,000 residuary penalty) are now obsolete.

### 2. Quick Reference: Penalties & Offences

#### A. Administrative/Civil Penalties (Adjudicated by Officers)

*These cover non-compliance by companies, intermediaries, and CAs.*

| Section | Non-Compliance Description                                        | Current Statutory Penalty (Post-2023)                      |
|---------|-------------------------------------------------------------------|------------------------------------------------------------|
| 33      | Certifying Authority failing to surrender suspended license.      | Penalty up to <b>Rs. 5,00,000</b> (5 Lakhs).               |
| 43      | Damage to computer systems (Hacking, Viruses, Denial of Service). | Compensation up to <b>Rs. 1 Crore</b> (to affected party). |
| 44(a)   | Failure to furnish documents/reports.                             | Penalty up to <b>Rs. 15,00,000</b> (15 Lakhs).             |
| 44(b)   | Failure to file returns (Late filing).                            | Penalty up to <b>Rs. 50,000 per day</b> .                  |

|       |                                                                                |                                                                                                    |
|-------|--------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------|
| 44(c) | Failure to maintain books of accounts.                                         | Penalty up to <b>Rs. 1,00,000 per day</b> .                                                        |
| 45    | <b>Residuary Penalty</b> (General violation where no specific penalty exists). | <b>Intermediaries/Companies:</b> Up to <b>Rs. 10 Lakhs. Individuals:</b> Up to <b>Rs. 1 Lakh</b> . |
| 67C   | Intermediary failing to preserve information/data.                             | Penalty up to <b>Rs. 25,00,000</b> (25 Lakhs).                                                     |
| 68    | Failure to comply with Controller's directions.                                | Penalty up to <b>Rs. 25,00,000</b> (25 Lakhs).                                                     |

### B. Cyber Crimes (Tried by Courts)

*These involve malicious intent (dishonesty, fraud, obscenity).*

| Section | Offence                                          | Max Punishment                              |
|---------|--------------------------------------------------|---------------------------------------------|
| 65      | Tampering with Source Code.                      | <b>3 Years</b> Jail + Rs. 2 Lakh Fine.      |
| 66      | Hacking / Data Theft (Dishonest intent).         | <b>3 Years</b> Jail + Rs. 5 Lakh Fine.      |
| 66B     | Receiving Stolen Computer Resource.              | <b>3 Years</b> Jail + Rs. 1 Lakh Fine.      |
| 66C     | Identity Theft (Password/Signature theft).       | <b>3 Years</b> Jail + Rs. 1 Lakh Fine.      |
| 66D     | Cheating by Personation.                         | <b>3 Years</b> Jail + Rs. 1 Lakh Fine.      |
| 66E     | Violation of Privacy (Capturing private images). | <b>3 Years</b> Jail + Rs. 2 Lakh Fine.      |
| 66F     | <b>Cyber Terrorism.</b>                          | <b>Life Imprisonment.</b>                   |
| 67      | Publishing Obscene Material.                     | <b>3-5 Years</b> Jail + Rs. 5-10 Lakh Fine. |
| 67A     | Publishing Sexually Explicit Material.           | <b>5-7 Years</b> Jail + Rs. 10 Lakh Fine.   |
| 67B     | Child Pornography.                               | <b>5-7 Years</b> Jail + Rs. 10 Lakh Fine.   |

### 3. Critical Timelines and Limits

| Context                              | Time Limit / Monetary Limit                                   |
|--------------------------------------|---------------------------------------------------------------|
| License Renewal                      | Apply <b>45 days</b> before expiry.                           |
| Suspension of CA License             | Max <b>10 days</b> (without hearing).                         |
| Suspension of Digital Signature      | Max <b>15 days</b> (without hearing).                         |
| Appeal to Appellate Tribunal (TDSAT) | File within <b>45 days</b> of order.                          |
| Appeal to High Court                 | File within <b>60 days</b> of Tribunal order.                 |
| Adjudicating Officer Jurisdiction    | Claims up to <b>Rs. 5 Crore</b> . (Above this goes to Court). |

### 4. What is NOT Covered? (The First Schedule)

Electronic signatures and the IT Act provisions do **NOT** apply to:

1. **Negotiable Instruments** (Promissory Notes, Bills of Exchange) — *Exception: Cheques ARE covered.*
2. **Powers of Attorney.**
3. **Trusts.**
4. **Wills and Testamentary Dispositions.**
5. **Real Estate Contracts** (Sale/Conveyance of Immovable Property).

### 5. Official Hierarchy

- **Top Authority:** Central Government.
- **Regulator:** Controller of Certifying Authorities (CCA).
- **Appellate Body:** Telecom Disputes Settlement and Appellate Tribunal (TDSAT).
- **Security Agency:** Indian Computer Emergency Response Team (CERT-In).



## PART A: PRACTICE QUESTIONS - Part 1 (Chapters I-VIII)

1. Which Section of the IT Act, 2000 provides legal recognition to electronic records?
  - (a) Section 3
  - (b) Section 4
  - (c) Section 5
  - (d) Section 6
2. Under Section 3, the authentication of an electronic record by a subscriber is done using:
  - (a) A biometric thumbprint
  - (b) An electronic signature or digital signature
  - (c) A password-protected file
  - (d) A unique IP address
3. According to Section 5, where any law requires a signature, that requirement is satisfied if the information is authenticated by:
  - (a) A scanned image of the physical signature
  - (b) A digital signature affixed in a pre-
  - (c) A notary public
  - (d) An email confirmation
4. Section 6 of the IT Act deals with the use of electronic records and electronic signatures in:
  - (a) Private corporate contracts only
  - (b) Government and its agencies
  - (c) Inter-state commerce
  - (d) International treaties
5. Under Section 7, which deals with the retention of electronic records, the record must be retained in a format that:
  - (a) Is encrypted with 256-bit encryption
  - (b) Can be printed on paper immediately
  - (c) Is accessible so as to be usable for subsequent reference
  - (d) Is stored on a government server only

6. **Section 10 confers power on the Central Government to make rules regarding:**
- (a) The appointment of police officers
  - (b) The Digital Signature
  - (c) The setup of cyber cafes
  - (d) The taxation of e-commerce
7. **Under Section 11, an electronic record is attributed to the originator if it was sent:**
- (a) By the originator himself
  - (b) By a person authorized to act on behalf of the originator
  - (c) By an information system programmed by the originator to operate automatically
  - (d) All of the above
8. **Section 12 deals with the 'Acknowledgement of Receipt'. If the originator has not agreed with the addressee on a particular form of acknowledgement, how can receipt be acknowledged?**
- (a) By any communication by the addressee (automated or otherwise)
  - (b) By any conduct of the addressee sufficient to indicate receipt
  - (c) Both (a) and (b)
  - (d) Only by a registered post letter
9. **According to Section 13, the dispatch of an electronic record occurs when:**
- (a) The originator presses the 'send' button
  - (b) It enters a computer resource outside the control of the originator
  - (c) The addressee reads the message
  - (d) It reaches the server of the addressee
10. **When is an electronic record deemed to be a "Secure Electronic Record" under Section 14?**
- (a) When it is password protected
  - (b) When a security procedure has been applied to it at a specific point of time
  - (c) When it is stored on a blockchain
  - (d) When it is sent via HTTPS
11. **Under Section 15, a "Secure Digital Signature" means the digital signature creation data was:**
- (a) Under the exclusive control of the signatory
  - (b) Shared with the Certifying Authority
  - (c) Stored in a public directory
  - (d) Generated by a third-party vendor

12. Who appoints the "Controller of Certifying Authorities" under Section 17?
- (a) The President of India (c) The Supreme Court  
(b) The Central Government (d) The NASSCOM
13. Which of the following is NOT a function of the Controller under Section 18?
- (a) Exercising supervision over Certifying Authorities (c) Specifying the form and manner of Digital Signature Certificates  
(b) Laying down standards for digital signatures (d) Arresting cyber criminals directly
14. Under Section 21, what constitutes a valid license for a Certifying Authority?
- (a) A license issued by the Controller (c) A general trade license  
(b) A registration with the Registrar of Companies (d) A clearance from the telecom ministry only
15. What is the maximum validity period of a license granted to a Certifying Authority under Section 21?
- (a) 1 Year (c) 5 Years  
(b) 3 Years (d) As prescribed by the Central Government
16. Section 24 relates to the "Procedure for Grant or Rejection of License". If a license is rejected, the applicant must be:
- (a) Fined immediately (c) Barred from applying again for 10 years  
(b) Given a reasonable opportunity of presenting their case (d) Arrested
17. Under Section 30, every Certifying Authority must disclose its:
- (a) Digital Signature Certificate (c) Annual Revenue Report  
(b) Certification Practice Statement (d) List of all employees

18. Under Section 34, the Controller can recognize a Foreign Certifying Authority. What is the condition for this?
- (a) The foreign CA pays a higher fee
  - (b) The foreign CA has a branch in India
  - (c) The Controller is satisfied that the foreign CA's standards are comparable to the Act's requirements
  - (d) The foreign CA is owned by the Indian Government
19. Section 35 allows any person to make an application to the Certifying Authority for the issue of:
- (a) An Electronic Signature Certificate
  - (b) A Tax Identification Number
  - (c) A Domain Name
  - (d) A Patent
20. Under Section 37, a Certifying Authority may suspend an Electronic Signature Certificate if:
- (a) The subscriber requests it
  - (b) The CA believes the certificate was obtained by fraud (pending inquiry)
  - (c) It is in the public interest
  - (d) All of the above
21. Section 40 places a duty on the subscriber to generate:
- (a) The Key Pair
  - (b) The Hash Function
  - (c) The Public Key only
  - (d) The Private Key only
22. What is the subscriber's duty regarding the "Private Key" under Section 42?
- (a) To publish it in a newspaper
  - (b) To share it with the Controller
  - (c) To exercise reasonable care to retain control of it
  - (d) To change it every 24 hours
23. According to Section 43 (Penalty for damage to computer), if a person downloads data without permission, they are liable to pay compensation to:
- (a) The Government
  - (b) The person so affected
  - (c) The Police Fund
  - (d) The Internet Service Provider



24. In the context of attribution (Section 13), if the originator and addressee have not agreed on a place of business, the deemed place of dispatch is:

- (a) The registered office of the ISP
- (b) The originator's place of residence
- (c) The location of the server
- (d) The nearest cyber cafe

25. Under Section 7A, the audit of documents, etc., maintained in electronic form applies to:

- (a) Only private companies
- (b) Any provision requiring audit of documents in a specific Act
- (c) Only financial transactions above 1 Crore
- (d) Only international transactions

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**ANSWER KEY**

| Q.No | Answer | Q.No | Answer |
|------|--------|------|--------|
| 1    | (b)    | 14   | (a)    |
| 2    | (b)    | 15   | (d)    |
| 3    | (b)    | 16   | (b)    |
| 4    | (b)    | 17   | (b)    |
| 5    | (c)    | 18   | (c)    |
| 6    | (b)    | 19   | (a)    |
| 7    | (d)    | 20   | (d)    |
| 8    | (c)    | 21   | (a)    |
| 9    | (b)    | 22   | (c)    |
| 10   | (b)    | 23   | (b)    |
| 11   | (a)    | 24   | (b)    |
| 12   | (b)    | 25   | (b)    |
| 13   | (d)    |      |        |

## PART B: PRACTICE QUESTIONS - Part 2 (Chapters IX-XIII)

26. Under Section 43A, if a body corporate is negligent in implementing reasonable security practices and sensitive personal data is compromised, it is liable to pay:
- (a) A fine of 5 Crores (c) A penalty to the Government  
(b) Compensation to the affected person (d) Fees to the Adjudicating Officer
27. Section 44 imposes a penalty for failure to furnish information or returns. The penalty amount may extend to:
- (a) 10,000 (c) 1,50,000  
(b) 50,000 (d) 5,00,000
28. Who appoints the 'Adjudicating Officer' under Section 46 to hold an inquiry into contraventions?
- (a) The State High Court (c) The Comptroller and Auditor General  
(b) The Central Government (d) The Cyber Appellate Tribunal
29. What is the maximum claim amount that an Adjudicating Officer can adjudicate under Section 46?
- (a) 1 Crore (c) 10 Crore  
(b) 5 Crore (d) No limit
30. According to Section 45 (Residuary Penalty), whoever contravenes any rules or regulations for which no specific penalty is provided, shall be liable to pay a compensation not exceeding:
- (a) 25,000 (c) 1,00,000  
(b) 50,000 (d) 5,00,000

31. Under Section 57, an appeal against the order of the Controller or Adjudicating Officer must be filed to the Appellate Tribunal within:
- (a) 30 days
  - (b) 45 days
  - (c) 60 days
  - (d) 90 days
32. Section 61 bars the jurisdiction of which courts in respect of any matter which the Adjudicating Officer or the Appellate Tribunal is empowered to determine?
- (a) Supreme Court
  - (b) High Court
  - (c) Civil Court
  - (d) Consumer Court
33. Which Section deals with the offence of "Tampering with computer source documents"?
- (a) Section 65
  - (b) Section 66
  - (c) Section 67
  - (d) Section 43
34. Section 66C prescribes punishment for which of the following offences?
- (a) Sending offensive messages
  - (b) Identity Theft
  - (c) Cheating by Personation
  - (d) Cyber Terrorism
35. Whoever cheats by personation using a communication device or computer resource is punishable under:
- (a) Section 66B
  - (b) Section 66C
  - (c) Section 66D
  - (d) Section 66E
36. Section 66E deals with the violation of privacy. It specifically punishes capturing, publishing, or transmitting the image of:
- (a) A public building
  - (b) A private area of any person without consent
  - (c) A protected system
  - (d) A government document

37. **Cyber Terrorism is defined under Section 66F. The punishment for this offence may extend to:**
- (a) 10 years imprisonment
  - (b) 20 years imprisonment
  - (c) Imprisonment for life
  - (d) Death penalty
38. **Section 67 punishes the publishing or transmitting of material which is lascivious or appeals to the prurient interest. This refers to:**
- (a) Obscenity
  - (b) Defamation
  - (c) Sedition
  - (d) Copyright infringement
39. **Which Section specifically deals with punishment for publishing or transmitting material containing sexually explicit act, etc., in electronic form?**
- (a) Section 67
  - (b) Section 67A
  - (c) Section 67B
  - (d) Section 66A
40. **Section 69 grants power to the Central or State Government to issue directions for interception, monitoring, or decryption of information for:**
- (a) The sovereignty or integrity of India
  - (b) Defence of India
  - (c) Security of the State
  - (d) All of the above
41. **What is the punishment for a subscriber who fails to extend facilities or assistance for decryption under Section 69?**
- (a) Imprisonment up to 7 years
  - (b) Imprisonment up to 3 years
  - (c) Fine only
  - (d) Revocation of citizenship
42. **Under Section 69A, the Government has the power to issue directions to block public access to any information. This is commonly known as:**
- (a) Website Blocking
  - (b) Internet Shutdown
  - (c) Digital Strike
  - (d) Bandwidth Throttling



43. **Section 72A** punishes the disclosure of information in breach of lawful contract. The imprisonment for this term may extend to:
- (a) 1 Year
  - (b) 3 Years
  - (c) 5 Years
  - (d) 7 Years
44. **According to Section 75**, the Act applies to any offence committed outside India by any person if the act involves:
- (a) An Indian citizen
  - (b) A computer, computer system, or network located in India
  - (c) An Indian company
  - (d) A foreign diplomat
45. **Section 77** states that no penalty imposed under this Act shall prevent the imposition of:
- (a) A civil lawsuit
  - (b) Punishment under any other law for the time being in force
  - (c) Double taxation
  - (d) Cancellation of Visa
46. **Under Section 79**, an Intermediary is not liable for any third-party information hosted by it if:
- (a) It observes "Due Diligence"
  - (b) It does not initiate the transmission
  - (c) It does not select the receiver of the transmission
  - (d) All of the above
47. **Who has the power to notify the "Examiner of Electronic Evidence" under Section 79A?**
- (a) The Supreme Court
  - (b) The Central Government
  - (c) The State Government
  - (d) The Forensic Science Laboratory
48. **Section 81** states that the provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law, EXCEPT:
- (a) The Copyright Act, 1957
  - (b) The Patents Act, 1970
  - (c) Both (a) and (b)
  - (d) The Indian Penal Code

49. Under Section 85 (Offences by Companies), who is liable to be proceeded against if a company commits an offence?

- (a) Only the shareholders
- (b) The company and every person in charge of and responsible for the conduct of business
- (c) Only the lower-level employees
- (d) Only the auditors

50. Which Section empowers the Police Officer to enter, search, and arrest without warrant in public places?

- (a) Section 78
- (b) Section 80
- (c) Section 82
- (d) Section 84

DAK GURU

**ANSWER KEY (Part 2)**

| Q.No | Answer | Q.No | Answer |
|------|--------|------|--------|
| 26   | (b)    | 39   | (b)    |
| 27   | (c)    | 40   | (d)    |
| 28   | (b)    | 41   | (a)    |
| 29   | (b)    | 42   | (a)    |
| 30   | (a)    | 43   | (b)    |
| 31   | (b)    | 44   | (b)    |
| 32   | (c)    | 45   | (b)    |
| 33   | (a)    | 46   | (d)    |
| 34   | (b)    | 47   | (b)    |
| 35   | (c)    | 48   | (c)    |
| 36   | (b)    | 49   | (b)    |
| 37   | (c)    | 50   | (b)    |
| 38   | (a)    |      |        |